

Court No. - 91

Case :- APPLICATION U/S 482 No. - 13664 of 2024

Applicant :- Ashok Kumar

Opposite Party :- State of U.P. and Another

Counsel for Applicant :- Amit Kumar Yadav, Shyam Mohan Singh

Counsel for Opposite Party :- G.A.

Hon'ble Prashant Kumar, J.

1. Heard Shri Shyam Mohan Singh, appearing for the applicant, Shri Shashidhar Pandey, learned A.G.A. for the State and perused the records.

2. The instant application under Section 482 of Cr.P.C. has been filed by the applicant praying for quashing of the bailable warrant dated 17.01.2024 issued by Additional Sessions Judge/F.T.C. Ist, Chandauli in Electricity Case No. 815 of 2023 (State Vs. Ashok Kumar), arising out of case crime no. 0662 of 2020, under Section 138(1)(b) of the Indian Electricity Act (Amendment), 2003, Police Station Anti Power Theft Chandauli, District Chandauli.

3. Learned counsel for the applicant submits that an inspection was carried out by the electricity department on 27.10.2020 at about 1.00 pm in which it is alleged that due to non payment of electricity dues, the electricity connection of the applicant was disconnected. However, the applicant has illegally connected the electricity wire from the pole and was using it, therefore, a complaint/FIR was lodged on 28.10.2020 at 5.15 pm.

4. By means of the instant application, the applicant has challenged the bailable warrant issued against the applicant.

5. Counsel for the applicant submits that provisions of Clause 8.1 of the U.P. Electricity Supply Code, 2005 was not followed while conducting raid at the house of the applicant.

4. Sri Udit Chandra, learned counsel appearing for the Electricity Department seeks one week time to file counter affidavit placing on record the relevant documents. He would also place on record about the details of the outstanding bill. The applicant will have two weeks' thereafter to file rejoinder affidavit.

5. List on 30-05-2024, showing the name of Sri Udit Chandra, as counsel for the opposite party no.2.

6. Till then, no coercive action shall be taken against the applicant in the aforementioned case.

Order Date :- 27.4.2024

Prajapati



HIGH COURT OF JUDICATURE AT ALLAHABAD

APPLICATION U/S 482 No. - 13664 of 2024

Ashok Kumar

.....Applicant(s)

Versus

State of U.P. and Another

.....Opposite
Party(s)

Counsel for Applicant(s) : Amit Kumar Yadav, Shyam Mohan Singh

Counsel for Opposite Party(s) : G.A.

Court No. - 75

HON'BLE DR. GAUTAM CHOWDHARY, J.

आवेदक के विद्वान अधिवक्ता एवं विद्वान अपर शासकीय अधिवक्ता उपस्थित है।

आवेदक के विद्वान अधिवक्ता का कथन है कि उन्हें प्रत्युत्तरशपथ-पत्र दाखिल करने हेतु एक सप्ताह का समय प्रदान कर दिया जाय।

आवेदक के विद्वान अधिवक्ता प्रत्युत्तरशपथ-पत्र दाखिल करने हेतु यथाप्रार्थित समय प्रदान किया जाता है।

तदनुसार, इस वाद को दि० 29.07.2026 को सूचीबद्ध किया जाय।

(Dr. Gautam Chowdhary, J.)

July 22, 2026

CP.sahani



HIGH COURT OF JUDICATURE AT ALLAHABAD

APPLICATION U/S 482 No. - 13664 of 2024

Ashok Kumar

.....Applicant(s)

Versus

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Counsel for Applicant(s) : Amit Kumar Yadav, Shyam Mohan Singh

Counsel for Opposite Party(s) : G.A.

Court No. - 75

HON'BLE DR. GAUTAM CHOWDHARY, J.

आवेदक के विद्वान अधिवक्ता एवं विद्वान अपर शासकीय अधिवक्ता उपस्थित है।

आवेदक के विद्वान अधिवक्ता द्वारा प्रत्युत्तरशपथ-पत्र दाखिल किया गया, इसे पत्रावली पर रखा जाय।

आवेदक के विद्वान अधिवक्ता के अनुरोध पर इस वाद को दि० 05.08.2026 को सूचीबद्ध किया जाय।

(Dr. Gautam Chowdhary, J.)

July 29, 2026

CP.sahani